Filing # 191353421 E-Filed 02/06/2024 01:06:24 PM

IN THE CIRCUIT COURT, FOURTH
JUDICIAL CIRCUIT, IN AND FOR
DUVAL COUNTY, FLORIDA

CASE NO.: 23-CA-008801

STEFEN WYNN,

Plaintiff,

vs.

CITY OF NEPTUNE BEACH,

Defendant.

_____/

ORDER GRANTING DEFENDANT'S MOTION TO DISMISS PLAINTIFF'S AMENDED COMPLAINT

This matter came before the Court on January 31, 2024 at 11:00 AM via a video hearing on Defendant's Motion to Dismiss Plaintiff's Amended Complaint ("the Motion"). Present at the hearing were Marie Mattox, attorney representing the Plaintiff, and Susan S. Erdelyi, attorney representing the Defendant. The Court has considered the Motion, with supportive and opposing memoranda of law and has heard argument of counsel. Therefore, it is:

ORDERED AND ADJUDGED:

1. Plaintiff's Amended Complaint is dismissed.

2. Plaintiff shall have leave to amend the Amended Complaint.

ACCEPTED: DUVAL COUNTY, JODY PHILLIPS, CLERK, 02/07/2024 04:29:47 PM

3. Plaintiff is directed to outline with specificity his claims under the "Whistle-blower's Act" (Florida Statute § 112.3187) in accordance with Fla. R. Civ. P. 1.110.

4. Plaintiff's counsel represented to the Court that Plaintiff had either two or three "written and signed complaint[s]" that form the basis for several of his § 112.3187(7) claims against Defendant. To the extent that Plaintiff claims retaliation based on the "written and signed complaint" provision of § 112.3187(7), he shall attach to the Second Amended Complaint, the "written and signed complaint" on which he bases his written claims.

5. Plaintiff's counsel represented to the Court that some of Plaintiff's claims are based on verbal statements that he made in response to an "inquiry." To the extent that Plaintiff claims retaliation pursuant to §112.3187(7), because he was "requested to participate in an investigation, hearing, or other inquiry conducted by any agency or federal government entity" he shall specify who requested his participation in such, the agency that conducted the "investigation, hearing or inquiry," the dates of Plaintiff's participation, the subject of the "investigation, hearing or other inquiry," and "a short and plain statement of the ultimate facts showing that Plaintiff is entitled to relief" under this provision of the statute.

6. Plaintiff shall have fifteen (15) days from the date of this Order to file a Second Amended Complaint.

7. Defendant, the City of Neptune Beach, shall have fifteen (15) days from the date of Plaintiff's filing of the Second Amended Complaint to file its response to the Second Amended Complaint.

DONE AND ORDERED in Duval County, Florida, this 6th day of February, 2024.

ROBERT M. DEES, Circuit Court Judge

Copies to:

Marie Mattox, Esquire
203 North Gadsden Street
Tallahassee, FL 32301
marie@mattoxlaw.com
Attorney for Plaintiff

Susan S. Erdelyi, Esquire
1200 Riverplace Blvd., Suite 800
Jacksonville, FL 32202
serdelyi@marksgray.com
jmcduffie@marksgray.com
Attorney for Defendant